

C. Attorney fees, costs, and representative payments.

The proposed fee of \$300,000 is not taken as a part of the gross settlement amount. Because this is relatively unusual, the Court notes a few points. First, if the fee were computed as a percentage of the total recovery, it would be 51% of the settlement fund, which would draw careful scrutiny from the Court. Second, it appears to have the effect of meaning that if the Court approves less than \$300,000, the difference benefits the defendant, not the class. Third, defendant may oppose the fee request. Fourth, the request will “not be based on any finding of a prevailing party[.]” Fifth, the settlement agreement is binding if approved and plaintiffs’ counsel retain all of their duties to the class and the Court, regardless of the outcome of the fee motion. **If any of these statements are not correct, counsel should contest the tentative ruling and appear at the hearing.**

Litigation costs of will be considered as part of the attorney fees motion.

Settlement administration costs and the requested representative payment of \$10,000 for each plaintiff will be reviewed at final approval. Representative payments will be reviewed under the Criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval, and grants the motion. The fee arrangement is subject to further review at the time of final approval and the fee motion.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Although the hearing date should be arranged through the Department 39 clerk, the hearing will be set in Department 16, the Honorable Benjamin Reyes, which is assigned this case for all purposes as of March 1, 2026. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

16. 9:00 AM CASE NUMBER: MSC21-00423

CASE NAME: MUTUKU VS NAZARI

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: MUTUKU, ELIJAH

TENTATIVE RULING:

Before the Court is Plaintiff/Cross-Defendant Elijah Mutuku’s motion for summary judgment. The motion relates to Defendant/Cross-Complainant Pervaiz Mohamad Nazari’s cross-complaint for (1) unpaid overtime wages, (2) failure to pay minimum wages, (3) failure to provide meal periods, (4) failure to provide rest periods, (5) failure to provide accurate wage statements, (6) waiting time penalties, (7) failure to reimburse business expenses, (8) retaliation-employment, (9) intentional

infliction of emotional distress, (10) breach of the covenant of quiet enjoyment, (11) breach of the warranty of habitability, (12) violation of the Richmond rent ordinance, (13) specific performance, (14) (anticipatory) breach of contract, (15) (anticipatory) breach of the covenant of good faith and fair dealing, (16) fraud, (17) negligence, (18) unfair business practices, (19) declaratory relief, and (20) injunctive relief.

Previously, the Court sustained a demurrer to Defendant/Cross-Complainant's thirteenth (specific performance), fourteenth ([anticipatory] breach of contract), and fifteenth ([anticipatory] breach of the covenant of good faith and fair dealing) causes of action. Although the Court granted leave to amend, Defendant/Cross-Complainant elected not to file an amended Cross-Complaint. These claims are no longer at issue.

As a threshold issue, the motion purports to move for an order of summary judgment on Defendant/Cross-Complainant's Cross-Complaint as well as summary judgment on his affirmative claims for financial elder abuse, intentional misrepresentation of fact, and breach of contract.

"A party may move for summary judgment *in an action* or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding," or "a party may move for summary adjudication as to one or more causes of action *within an action*." (Code Civ. Proc., § 437c, subds. (a)(1) & (f)(1), emphasis added.) These references to "an action" in the summary judgment statute are singular references. The word "action" is defined as "an ordinary proceeding in a court of justice by which one party prosecutes another [...]." (Code Civ. Proc., § 22, emphasis added.)

The Complaint and the Cross-Complaint are legally two separate actions. "'Where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. [Citations.]' [Citation omitted.]" "Where a cross-complaint is filed there are two simultaneous actions pending between the parties wherein each is at the same time both a plaintiff and a defendant." [Citation.]' [Citations omitted.]" (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134.)

No authority, of which this Court is aware, permits a party to move for summary adjudication of causes of action in a complaint as well as summary adjudication of claims made in a cross-complaint in a single motion under Code of Civil Procedure section 437c. Nevertheless, Defendant and Cross-Complainant did not file an opposition or objection, and so the Court will address the motion for summary adjudication on the Complaint and the Cross-Complaint on the merits.

For the following reasons, the motion is **granted**.

Request for Judicial Notice

Defendant/Cross-Complainant requests judicial notice of a discovery ruling, deemed admissions, and prior judgments. The unopposed request is **granted**. (Evid. Code §§ 452, 453.)

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the MSJ. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

The instant motion relies on deemed admissions by Defendant/Counter-Complainant.

"[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein." (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.) "A party is bound by admissions made in the course of discovery and, on motion for summary judgment, no further evidence of the matters so deemed admitted is required." (*Hejmadi v. AMFAC, Inc.* (1998) 202 Cal.App.3d 525, 553; see also *Murillo v. Superior Court* (2006) 143 Cal.App.4th 730, 736.) In ruling on a motion for summary judgment/adjudication, the court may disregard declarations submitted in support of an opposition which controvert a prior admission by that party. (See *D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21 [disapproved on other grounds in *Woodland Hills Residents Association, Inc. v. City Council* (1979) 23 Cal.3d 917, 929]; *Prilliman v. United Air Lines, Inc.* (1997) 53 Cal.App.4th 935, 961; *Jogani v. Jogani* (2006) 141 Cal.App.4th 158, 177; *Cohen v. Kabbalah Centre Internat., Inc.* (2019) 35 Cal.App.5th 13, 18.)

Analysis

Cross-Complaint

Labor Code Violations

The First eight causes of action in Defendant/Cross-Complainant's Cross-Complaint arise out of alleged violations of the California Labor Code. Specifically, his causes of action for (1) unpaid overtime wages, (2) failure to pay minimum wages, (3) failure to provide meal periods, (4) failure to provide rest periods, (5) failure to provide accurate wage statements, (6) waiting time penalties, (7) failure to reimburse business expenses, and (8) retaliation-employment. However, each of these claims is predicated on an employment relationship, and it is deemed admitted that

Defendant/Counterclaimant was never an employee of Plaintiff. (RFAs to Defendant/Cross-Complainant, Set One, Request No. 13.) As a consequence, Plaintiff/Counter-Complainant owed no duties to him under the Labor Code and is entitled to summary judgment on Defendant/Counter-Complainant's first eight causes of action.

(9) intentional infliction of emotional distress

"A cause of action for intentional infliction of emotional distress exists when there is '(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.' A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.'" (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-51[.])

Defendant/Cross-Complainant's ninth cause of action is predicated on his allegations that Plaintiff/Cross-Defendant failed to act reasonably or lawfully towards him. (See First Amended Cross-Complaint at ¶¶ 92-95.) However, it is deemed admitted that Plaintiff was not negligent, complied with the terms of the promissory note, and was not fraudulent toward Defendant. (RFAs to Defendant/Cross-Complainant, Set One, Request Nos. 1, 7, and 9.) Furthermore, to the extent this claim is predicated on Defendant/Cross-Complainant's allegation that he was a tenant (FAXC at ¶ 95), the undisputed evidence demonstrates that he did not pay rent (Mutuku Decl. at ¶ 25) and unlawfully possessed the property (RJN Ex. A.)

Plaintiff/Cross-Defendant is entitled to summary judgment on Defendant/Cross-Complainant's cause of action for intentional infliction of emotional distress.

Landlord Tenant Violations

Defendant/Cross-Complainant's tenth (breach of the covenant of quiet enjoyment), eleventh (breach of the warranty of habitability), and twelfth (violation of the Richmond rent ordinance) causes of action are each predicated on a landlord-tenant relationship. However, Plaintiff/Cross-Defendant has adduced evidence that Defendant/Cross-Complainant did not pay rent (Mutuku Decl. at ¶ 25) and unlawfully possessed the property (RJN Ex. A.) That said, the Court notes that judgment in an unlawful detainer action does not necessarily preclude a tenant's subsequent claims arising out of a tenancy. (See, e.g., *Moriarty v. Laramar Management Corp.* (2014) 224 Cal.App.4th 125, 138-140 [default judgment in unlawful detainer action did not preclude tenant's claims for breach of warranty of habitability and wrongful eviction based on violating the Ordinance and these claims not subject to Code Civ. Proc., § 425.164]; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1254 [unlawful detainer judgment did not preclude tenant's subsequent wrongful eviction claims because the stipulation did not "manifest the objective intention of the parties to award permanent possession to [the landlord] or to constitute a waiver of the [tenants'] right to reoccupy the apartment"].) With respect to habitability, Defendant/Cross-Complainant did admit that Plaintiff was under no obligation to keep the premises habitable. (RFAs to Defendant/Cross-Complainant, Set One, Request No. 13.) In light of this admission and Plaintiff's declaratory testimony, the Court concludes that Plaintiff/Cross-

Defendant has met his initial burden with respect to Defendant/Cross-Complainant's landlord tenant claims. And, as Defendant/Cross-Complainant has failed to file any opposition to the motion, the Court finds that he has failed to meet his responsive evidentiary burden. Accordingly, the unopposed motion is granted as to Defendant/Cross-Complainant's tenth, eleventh, and twelfth causes of action.

(16) fraud

The elements of fraud, which gives rise to the tort action for deceit, and intentional misrepresentation are the same: (1) false representation, concealment, or nondisclosure; (2) knowledge of falsity, or scienter; (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 174.) Here, the Cross-Complaint alleges several allegedly fraudulent misrepresentations including "that Nazari was (1) going to be gainfully employed, (2) going to be able to purchase a property at a substantial discount, and (3) going to be a tenant in a habitable Premises." (XC at ¶ 157.) Defendant/Cross-Complainant's deemed admissions include that Plaintiff was not fraudulent and was not obligated to keep the premises habitable for him. (RFAs to Defendant/Cross-Complainant, Set One, Request No. 9, 10.) Additionally, Plaintiff/Cross-Defendant has introduced evidence that his offer to sell the property was genuine and made conditional on Defendant/Cross-Complainant providing an interest in his automobile business. (Mutuku Decl. at ¶ 19.) In light of these admissions and Plaintiff's declaratory testimony, the Court concludes that Plaintiff/Cross-Defendant has met his initial burden with respect to Defendant/Cross-Complainant's fraud claim. And, as Defendant/Cross-Complainant has failed to file any opposition to the motion, the Court finds that he has failed to meet his responsive evidentiary burden. Accordingly, the unopposed motion is granted as to Defendant/Cross-Complainant's sixteenth cause of action for fraud.

(17) negligence

The basic elements of a cause of action for negligence are: (1) the existence of a legal duty; (2) breach of that duty; (3) causation; and (4) resulting damages. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213; *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158; *Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.) "Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property ..." (Civ. Code, § 1714.)

Here, Plaintiff/Cross-Defendant has introduced evidence that he made a genuine offer to sell, conditional on Defendant/Cross-Complainant providing an interest in his automobile business that was never finalized. (Mutuku Decl. at ¶ 19.) Furthermore, it is deemed admitted that Plaintiff was not negligent. (RFAs to Defendant/Cross-Complainant, Set One, Request No. 1.) In light of these admissions and Plaintiff's declaratory testimony, the Court concludes that Plaintiff/Cross-Defendant has met his initial burden with respect to Defendant/Cross-Complainant's negligence claim. And, as Defendant/Cross-Complainant has failed to file any opposition to the motion, the Court finds that he has failed to meet his responsive evidentiary burden. Accordingly, the unopposed motion is granted as to Defendant/Cross-Complainant's seventeenth cause of action for negligence.

(18) unfair business practices

"[S]ection 17200 'borrows' violations of other laws and treats them as unlawful practices" that the

unfair competition law makes independently actionable. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.) As pled, Defendant's Cross-Complaint is unclear as to the predicate violation upon which it relies for its 17200 claim. Even assuming arguendo that Defendant's landlord/tenant causes of action or fraud claim are intended to serve as a predicate for the 17200 claim, Plaintiff/Cross-Defendant has established that he is entitled to summary adjudication on those claims, as discussed herein. Plaintiff/Cross-Defendant is entitled to summary adjudication of Defendant's 17200 claim.

(19) declaratory relief

California Courts have recognized that "[t]he existence of an 'actual controversy relating to the legal rights and duties of the respective parties,' suffices to maintain an action for declaratory relief." (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605.) "Any person interested under a written instrument,... or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (*Id.* [quoting Code Civ. Proc, § 1060].)

As discussed *infra*, the Court grants Plaintiff/Cross-Defendant's motion with respect to all of the causes of action of the Cross-Complaint. Thus, an actual controversy sufficient to sustain a declaratory judgment cause of action does not exist. Plaintiff/Cross-Defendant

is entitled to summary adjudication of Defendant's declaratory relief claim.

(20) injunctive relief

For similar reasons as discussed above, Plaintiff/Cross-Defendant is entitled to summary judgment of Defendant/Cross-Complainant's last remaining claim for injunctive relief.

Complaint

Financial Elder Abuse

One has committed "financial abuse" of an elder adult if one "takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult," either for a wrongful use, with intent to defraud, or by undue influence, or assists another in doing so. (Welf. & Inst. Code § 15610.30, subd. (a).)

It is undisputed that Plaintiff/Cross-Defendant is an elder under the meaning of the Elder Abuse Act. (Mutuku Decl. at ¶ 3.) Furthermore, Plaintiff/Cross-Defendant asserts that he offered to sell his property in good faith in exchange for an interest in Defendant/Cross-Complainant's business. (*Id.* at ¶ 19.) Plaintiff contends that Defendant never performed his part but insisted on remaining on the property without title or tenancy rights. (*Id.* at ¶¶ 19, 23-26, 36, 37.) When Plaintiff/Cross-Defendant declined to complete the sale, Defendant/Cross-Complainant used coercion and threats, including following Plaintiff/Cross-Defendant to his home, forcing Plaintiff/Cross-Defendant into a vehicle, and taking him to a location where a fraudulent promissory note was executed under duress. (Mutuku

Decl. ¶¶ 25-30.) Defendant/Cross-Complainant fabricated a \$55,000 “loan” that never occurred and attempted to use the false instrument to obtain Plaintiff’s property. (Mutuku Decl. ¶¶ 29-31.)

Furthermore, according to Defendant/Cross-Complainant’s deemed admissions, Plaintiff did not borrow \$55,000 from him and he unjustly influenced, forced, and threatened Plaintiff to sign a promissory note. (RFAs to Defendant/Cross-Complainant, Set One, Request Nos. 3,4.)

Defendant/Cross-Complainant also admitted that Plaintiff complied with the promissory note and he breached his obligations under that same note. (*Id.* at Nos. 7,8.) Finally, Defendant/Cross-Defendant admitted that he caused to be drafted the Promissory Note as alleged in Plaintiff’s complaint. (*Id.* at No. 14.)

The Court finds that Plaintiff/Cross-Defendant has met his initial burden as to a cause of action for Financial Elder Abuse. The burden then shifts to Defendant/Cross-Complainant to show a triable issue as to one of more material facts or a defense thereto exists. As Defendant/Cross-Complainant has failed to file any opposition to the motion, the Court finds that he has failed to meet his responsive evidentiary burden. Accordingly, the unopposed motion is granted as to Plaintiff’s first cause of action for financial elder abuse.

Intentional Misrepresentation of Fact

The elements of fraud, which gives rise to the tort action for deceit, and intentional misrepresentation are the same: (1) false representation, concealment, or nondisclosure; (2) knowledge of falsity, or scienter; (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 174.) Fraud by concealment or nondisclosure involves the failure to make a full and fair disclosure of known facts connected with the matter about which a party has assumed to speak, when there is a duty to speak.

Here, it is undisputed that Defendant/Cross-Complainant represented to Plaintiff that he would vacate the property upon the receipt of \$55,000 prior to July 2, 2021. (RFAs to Defendant/Cross-Complainant, Set One, Request No. 5.) Plaintiff/Cross-Defendant contends that this representation was false, as Defendant never planned on moving out of the residence. (Mutuku Decl. ¶ 34.) Indeed, Defendant/Cross-Complainant refused to accept a cashier’s check from either Plaintiff/Cross-Defendant or his son-in-law for \$55,000. (*Id.* at ¶¶ 34, 35.) As a consequence, Plaintiff was unable to rent or sell the property while Defendant remained in possession. (*Id.* at ¶ 37.)

Plaintiff/Cross-Defendant’s evidence is sufficient to meet his initial burden on his claim for intentional misrepresentation. As the present motion is unopposed, Defendant/Cross-Complainant has failed to meet his responsive evidentiary burden. Accordingly, the unopposed motion is granted as to Plaintiff/Cross-Defendant’s second cause of action for intentional misrepresentation.

Breach of Contract

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Here it is undisputed that Plaintiff/Counter-Defendant attempted to perform under the Promissory Note, even though he entered into it under duress. (Mutuku Decl. at ¶¶ 30-36.) It is also deemed

admitted that Plaintiff/Cross-Defendant did not borrow \$55,000 from Defendant/Cross-Complainant and that Defendant unjustly influenced, forced, and threatened Plaintiff to sign a promissory note. (RFAs to Defendant/Cross-Complainant, Set One, Request Nos. 3,4.) Defendant/Cross-Complainant also admitted that Plaintiff complied with the promissory note and he breached his obligations under that same note. (*Id.* at Nos. 7,8.) Finally, Defendant/Cross-Defendant admitted that he caused to be drafted the Promissory Note as alleged in Plaintiff's complaint. (*Id.* at No. 14.)

Plaintiff/Counter-Defendant has met his initial burden to show he is entitled to summary judgment on his third cause of action for breach of contract. Defendant/Counter-Complainant did not oppose the motion and did not raise a triable issue as to any material fact. Accordingly, Plaintiff's unopposed motion is granted as to his third cause of action for breach of contract.

17. 9:00 AM CASE NUMBER: MSC21-00588

CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES BY DEFENDANT SITECH NORCAL INC.**

FILED BY: SHARMA, SHALINI

TENTATIVE RULING:

Plaintiff was injured while operating a "motor grader" on a construction site called "MOTCO" (short for Military Ocean Terminal Concord), in August of 2020. He alleges that Sitech Norcal was responsible for, but negligently performed, maintenance of the grader.

Plaintiff moves to compel further responses by Sitech Norcal to Special Interrogatories 19, 20, 21, and 23. The interrogatories are as follows: Special interrogatories 19 (employee contact information for those who serviced, inspected or installed large earthmoving equipment in August 2020) , response is that customer information is confidential; 20 (employee contact information for employees who went to MOTCO in August 2020) (same response as 19); 21 (employee contact information on those who were involved in servicing, renting, leasing or installing any equipment used at MOTCO in August 20 (same response as 19), 23 (employee contact information for those who have knowledge about any person going to MOTCO with a GPS module on August 20, 2020 (same response as 19).

Sitech contends that using the entire month of August is overbroad, because the accident occurred on only one day. This is not a valid objection, given that maintenance of the equipment might have happened on days other than the incident. The month in which the accident occurred is a reasonable time period for the interrogatories. Nor is the reference to number 19 adequate, because it asks for a potentially different class of employees and the answer simply asserted that the information is confidential.

In addition, Sitech amended its responses to number 20, 21, and 23 on January 23, 2026. The amended response is attached as Exhibit G to counsel's declaration. The amended responses to 20 and 21 refer to the previous answer to 19. The amended response to 23 states that Sitech is investigating and will supplement later. These are not materially different, given that the